

## 24AVCV01140 24AVCV01140

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-09-15

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=ATP%2CA14%2C09%2F15%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ATP%2CA14%2C09%2F15%2F2026)

Source SHA-256: 85391dd9b676a9173b29184f3c2c5d244786a33310bb37f4baa4f9e85c001f35

Case Number: 24AVCV01140 Hearing Date: September 15, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

CAROLYN AGAZA GILMORE (widow) and the ESTATE OF JEFFREY ALLEN GILMORE,¿¿¿

Plaintiffs,

v.

EXXON MOBIL CORPORATION, a New Jersey Corporation; STATE OF CALIFORNIA DEPARTMENT OF TRANSPORTATION; CHEVRON CORPORATION, a Delaware Corporation; PHILLIPS 66 COMPANY, a Delaware Corporation; ATLANTIC RICHFIELD COMPANY, a Delaware Corporation; and DOES 1 through 100,¿inclusive,¿

Defendants.

Case Number 24AVCV01140

[TENTATIVE]

RULING ON MOTIONS

Date of Hearing: September 15, 2026

Dept. A-14

Judge William H. Forman

I. Introduction and Background

Jeffrey Gilmore (Decedent) was a highway maintenance worker for Caltrans from June 2006 to August 2020 (Second Amended Complaint (“SAC”) ¶ 4.) For the last decade of his time at Caltrans, Decedent maintained highway berms, using various gasoline-powered tools. It is alleged that Decedent was exposed to gasoline fumes when filling up this equipment, and that he breathed in gasoline exhaust fumes as he worked on the highways. (SAC, ¶¶ 3, 11.) Decedent contracted Acute Myeloid Leukemia (“AML”). He died from this disease on September 1, 2023. (SAC, ¶¶ 12-13.)

On September 12, 2024, Decedent's widow, Carolyn Agaza Gilmore (Gilmore) and The Estate of Jeffrey Allen Gilmore (Estate) (together Plaintiffs) brought a wrongful death Complaint against Defendants Exxon, Chevron, State of California Department of Transportation (DOT), Phillips 66 Company (Phillips), and Atlantic Richfield Company (ARCO) (collectively Defendants). The crux of the lawsuit is that Defendant oil companies refine and distribute gasoline with unsafe levels of benzene, and that exposure to benzene, through gasoline vapors and automobile exhaust, caused Decedent's cancer. (SAC, ¶¶ 14-16.)

All the defendant oil companies have moved for summary judgment. Before the Court now are the motions for summary judgment or, in the alternative, for summary adjudication (“Motions”) of defendants Exxon and Chevron (“Moving Defendants”).

For the reasons stated below, the Court must grant the Motions.

-----

## II. Preliminary Procedural Issues

Moving Defendants' Identical Motions –The Court notes that Moving Defendants filed two motions, separate statements, appendixes of exhibits volumes one and two, notices of lodgment of out of state authorities, Declarations of Dominik D. Alexander, PhD, and Declarations of Jane W. Kaufman, one of each in support of Exxon's motion, and one of each in support of Chevron's motion. On review of the documents, the Court finds that they are identical documents, with the only difference being the titles of certain documents referencing one named Defendant's motion. Due to the identical nature of the documents, the Court will cite to Moving Defendants' filings jointly (e.g., “Motion, p. 1:1-5” rather than “Exxon's Motion, p. 1:1-5, Chevron's Motion, p. 1:1-5”).

-----

## III. Requests for Judicial Notice

Moving Defendants' Request for Judicial Notice – Moving Defendants each request the Court take judicial notice of:

1. Cited excerpts of 71 Fed. Reg. 15804 (2006), the Environmental Protection Agency's Proposed Rule on the Control of Hazardous Air Pollutants From Mobile Sources;
2. Cited excerpts of 72 Fed. Reg. 8428 (2007), the Environmental Protection Agency's Final Rule on the Control of Hazardous Air Pollutants From Mobile Sources, 2007;
3. The Agency for Toxic Substances and Disease Registry, U.S. Department of Health and Human Services' Automotive Gasoline fact sheet dated September 1996;

4. The U.S. Environmental Protection Agency's Substance Details for Gasoline;
5. The U.S. Environmental Protection Agency's Benzene TEACH Chemical Summary;
6. The U.S. Environmental Protection Agency's Gasoline Overview.

Moving Defendants' request is GRANTED.

Plaintiff's Request for Judicial Notice – Plaintiff requests the Court take judicial notice of:

1. Cited excerpts of California Energy Commission, "California's Oil Refinery-California Oil Refinery Locations and Capacities" (date current as of July 8, 2026);
2. Cited excerpts US Environmental Protection Agency, "Mobile Source Fuels Civil Penalty Policy-Part 1090 Fuels Standards Requirements;
3. Footnote 8 - International Business Times Sept 6, 2017 "Oil Companies Leaking Benzene Lobbied Against Pollution Rule," Jay Casandro and David Sirota;
4. Footnote 5 - [https://www.p65warnings.ca.gov/sites/files/downloads/factsheets/gasoline\\_engine\\_exhaust\\_fact\\_sheet.pdf](https://www.p65warnings.ca.gov/sites/files/downloads/factsheets/gasoline_engine_exhaust_fact_sheet.pdf);
5. <https://www.energy.ca.gov/data-reports/energy-almanac/California-petroleum-market/California-oil-refineries>.

Plaintiff's requests as to numbers one and two are GRANTED.

Plaintiff's requests as to numbers three, four, and five are DENIED. (See *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 194 ["[t]he contents of the Web sites and blogs are 'plainly subject to interpretation and for that reason not subject to judicial notice'"]; *Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 889 [while some federal cases may permit judicial notice to be taken of government-maintained websites, "California law does not," and there is "no 'official Web site' provision for judicial notice in California"].)

-----

#### IV. Evidentiary Objections

Moving Defendants' Objections to Plaintiff's Evidence – Moving Defendants submit 36 objections to the evidence presented by Plaintiff in support of her opposition based primarily on hearsay and lack of authentication, personal knowledge, and foundation grounds.

Moving Defendants' objections are SUSTAINED as to Nos. 1-23 and 26-35.

Moving Defendants' objection is OVERRULED as to No. 24.

Moving Defendants' objections and the admissibility of Plaintiff's evidence is discussed further below. (See Causation discussion, *infra*.)

-----

## V. Legal Standard

Standard for Motion for Summary Judgment – Summary judgment is proper “if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) The moving party bears the initial burden of production to make a *prima facie* showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A defendant moving for summary judgment must show either (1) that one or more elements of the cause of action cannot be established or (2) that there is a complete defense to that cause of action. (Code Civ. Proc., § 437c, subd. (p).) A defendant may discharge this burden by furnishing either (1) affirmative evidence of the required facts or (2) discovery responses conceding that the plaintiff lacks evidence to establish an essential element of the plaintiff's case. If a defendant chooses the latter option, he or she must present evidence “and not simply point out that plaintiff does not possess and cannot reasonably obtain needed evidence.” (*Aguilar*, *supra*, 25 Cal.4th at 865-66.)

Under the latter approach, a defendant's initial evidentiary showing may ‘consist of the deposition testimony of the plaintiff's witnesses, the plaintiff's factually devoid discovery responses, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action.’ [Citation.] In other words, a defendant may show the plaintiff does not possess evidence to support an element of the cause of action by means of presenting the plaintiff's factually devoid discovery responses from which an absence of evidence may be reasonably inferred. [Citation.]

(*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1103 (internal citations omitted). Until the moving defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action, however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (See Code Civ. Proc. § 437c(p)(2).) On a motion for summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, 21.)

The court must grant a motion for summary judgment if, after all admissible evidence is considered, there is no triable issue as to any material fact. (See Code Civ. Proc. § 437c(c).) The court has no discretion to deny a summary judgment motion where the moving party has met their burden and the opposing party has failed to establish any triable issue of material fact exists, and the moving party is entitled to judgment as a matter of law. (*Krasley v. Superior Court* (1980) 101 Cal.App.3d 425, 431.)

A party may also move for summary adjudication as to one or more causes of action within an action, one or more claims for damages, or one or more issues of duty if the party contends the cause of action has no merit, that there is no merit to a claim for damages, or that one or more defendants did not owe a duty to the plaintiff. (Code Civ. Proc., § 437c, subd. (f)(1).) A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment, shall proceed in all procedural respects as a motion for summary judgment, and shall only be granted if it completely disposes of a cause of action, a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1)-(2).)

-----

## VI. Discussion

Moving Defendants move for summary judgment pursuant to Code of Civil Procedure section 437c on the grounds that 1) Plaintiffs' claims are preempted by the Clean Air Act and 2) Plaintiffs cannot show that Defendants caused Decedent's injuries or death. (Motion, p. 6:7-9.) In the alternative, Moving Defendants move pursuant to Code of Civil Procedure section 437c, subdivision (f) for an order summarily adjudicating the issues that Plaintiff lacks admissible evidence to prove her (1) strict liability design defect claim, (2) negligent design defect claim, (3) strict liability manufacturing defect claim, (4) negligent manufacturing defect claim, (5) strict liability failure to warn claim, and (6) negligent failure to warn claim. (Motion, p. 6:10-17.)

### a. Preemption Under the Clean Air Act

Moving Defendants first move for summary judgment on the grounds that the U.S. Environmental Protection Agency (EPA) regulates gasoline and vehicle exhaust pursuant to the Clean Air Act (CAA), which expressly and impliedly preempts Plaintiffs' lawsuit. (Motion, p. 7:7-9.)

"The supremacy clause of the United States Constitution establishes a constitutional choice-of-law rule, makes federal law paramount, and vests Congress with the power to preempt state law. [Citation.]" (*Viva! Internat. Voice for Animals v. Adidas Promotional Retail Operations, Inc.* (2007) 41 Cal.4th 929, 935.) The four types of federal preemption are express, conflict, obstacle, and field. (*Ibid.*)

Moving Defendants argue all of Plaintiffs claims are preempted by the CAA. First, they argue the claims are expressly preempted on the grounds that the preemption statutes bar Plaintiffs' causes of action because they are based on emissions from new motor vehicles and inclusion of benzene in the gasoline sold by Defendants. (Motion, p. 15:10-18.) Next, they argue the claims are also precluded through field preemption because Congress has preempted the field with regard to emissions, motor vehicle fuels, and fuel additives, and the CAA provides a full set of standards regarding gasoline characteristics and composition fulfilling Congressional intent to ensure uniformity of gasoline throughout the nation, relying in part on *Washington v. General Motors Corp.* (1972) 406 U.S. 109. (Motion, p. 16:9-20.) Finally, Moving Defendants argue obstacle preemption applies, as Plaintiffs' claims are inconsistent with federal objectives and would have the Court and a jury find that Defendants breached their duty under California law to remove certain components, namely benzene, from gasoline before selling it to consumers, which would pose an obstacle to the EPA's goal of ensuring gasoline uniformity. (Motion, p. 17:14-18.) Moving Defendants specifically argue that a "no benzene" duty would serve as an obstacle to the EPA's objective not to lower benzene content of gasoline, as the EPA determined an average benzene level below 0.62% would be unreasonable and achievable only by 50% of refineries. (Motion, p. 17:19-18:3; Ex. 8, p. 90, 71 Fed. Reg. 15804, 15866 (2006).)

The relevant undisputed facts are as follows: (1) Plaintiff alleges Moving Defendants' gasoline is defective because it contains benzene and when combusted, creates exhaust containing benzene (PSUMF, ¶ 1); (2) Under the CAA, the Environmental Protection Agency ("EPA") regulates the benzene content of gasoline (PSUMF, ¶ 3); (3) the EPA permits gasoline and vehicle exhaust to contain benzene[1] (PSUMF, ¶ 4); and (4) Moving Defendants deliver gasoline, gasoline products, and diesel fuel to retail gasoline service stations throughout California and specifically in the Antelope Valley in Los Angeles County (Motion, p. 9:13-16; SAC, ¶ 5.)

In support, Moving Defendants provide Plaintiff's responses to Special Interrogatories propounded by each Moving Defendant, in which Plaintiff identifies the presence of benzene in the fuel despite the alleged existence of safer alternatives as the crux of her strict liability and negligent design, manufacturing, and warning claims. (Ex. 2-5.) Moving Defendants also provide the Proposed Rules from the EPA regarding control and reduction of benzene and other hazardous air pollutants from mobile sources and proposed controls on gasoline, vehicles, and portable gasoline containers, in which the EPA proposed the current 0.62% benzene content annual average and states: "As the most stringent case, we evaluated a national average benzene content standard of 0.52 vol%. Our analysis indicates that a standard at this level would require all refiners to invest in the most effective technologies used today.... Because of the almost universal need for refineries to use the most expensive reformate-based benzene control technologies, we believe a standard of 0.52 vol% would be very challenging economically for many refineries, and we believe that such a standard would not be achievable taking costs into consideration, as we are required to do under section 202(l)," that 0.62 vol% was achievable under the assessments, and

“implementing an average benzene standard of 0.62 vol% would achieve several other important program goals.” (Ex. 8, p. 90.)

Moving Defendants also provide a publication, “ToxFAQs,” from the Agency for Toxic Substances and Disease Registry, a part of the US Department of Health and Human Services, which states that “[t]ypically, gasoline contains more than 150 chemicals, including small amounts of benzene, toluene, xylene, and sometimes lead. How the gasoline is made determines which chemicals are present in the gasoline mixture and how much of each is present. The actual composition varies with the source of the crude petroleum, the manufacturer, and the time of year.” (Ex. 10, p. 123.) Also attached in support is an EPA TEACH chemical summary about benzene, which states it is “an organic compound found most often in air as a result of emissions from burning coal and oil, gasoline vapors at gasoline service stations, motor vehicle exhaust, cigarette smoke, wood-burning fires, some adhesives, and other sources,” and that benzene is a “natural part of crude oil [and] gasoline (1% to 2% benzene).” (Ex. 12, p. 132, 141.) Moving Defendants provide a Gasoline Overview from the EPA, which shows that the EPA has implemented a regulatory program, Air Toxics Standards for Gasoline, to limit the content of toxic chemicals in gasoline, including benzene, and that the program is implemented at the federal level. (Ex. 13, p. 147-48.)

Finally, Moving Defendants provide three non-binding out of state authorities cited in support of its motion: (1) *Exxon Corp. v. New York* (2d Cir. 1977) 548 F.2d 1088, (2) *Jackson v. GMC* (S.D.N.Y. 2011) 770 F. Supp. 2d 570, and (3) *American Auto. Mfrs. Ass’n v. Commissioner* (D.Mass. 1997).

Our Supreme Court in *Viva! Internat. Voice for Animals v. Adidas Promotional Retail Operations, Inc.*, (2007) 41 Cal. 4th 929, 936 described the different types of federal preemption:

First, express preemption arises when Congress “define[s] explicitly the extent to which its enactments pre-empt state law. [Citation.] Pre-emption fundamentally is a question of congressional intent, [citation], and when Congress has made its intent known through explicit statutory language, the courts’ task is an easy one.” (*English v. General Electric Co.*, supra, 496 U.S. at pp. 78–79, 110 S.Ct. 2270; accord, *Jevne v. Superior Court*, supra, 35 Cal.4th at p. 949, 28 Cal.Rptr.3d 685, 111 P.3d 954.) Second, conflict preemption will be found when simultaneous compliance with both state and federal directives is impossible. (*Hillsborough County v. Automated Medical Labs.* (1985) 471 U.S. 707, 713, 105 S.Ct. 2371, 85 L.Ed.2d 714; *Olszewski v. Scripps Health* (2003) 30 Cal.4th 798, 815, 135 Cal.Rptr.2d 1, 69 P.3d 927.) Third, obstacle preemption arises when “ ‘under the circumstances of [a] particular case, [the challenged state law] stands as an obstacle to the accomplishment and execution of the full purposes and objectives of Congress.’ ” (*Crosby v. National Foreign Trade Council*, supra, 530 U.S. at p. 373, 120 S.Ct. 2288, quoting *Hines v. Davidowitz* (1941) 312 U.S. 52, 67, 61 S.Ct. 399, 85 L.Ed. 581; accord, *Bronco Wine Co. v. Jolly*, supra, 33 Cal.4th at p. 955, 17 Cal.Rptr.3d 180, 95 P.3d 422.) Finally, field preemption, i.e., “Congress’ intent to pre-empt all state law in a particular area,” applies “where the scheme of federal regulation is sufficiently comprehensive to make reasonable the inference that Congress ‘left no room’ for supplementary state regulation.” (*Hillsborough County*, at p. 713, 105 S.Ct. 2371, quoting *Rice v. Santa Fe Elevator Corp.* (1947) 331 U.S. 218, 230, 67 S.Ct. 1146, 91 L.Ed. 1447.)

(See also *Williamson v. Mazda Motor of Am., Inc.* (2011) 562 U.S. 323, 328-30; *Geier v. Am. Honda Motor Co.* (2000) 529 U.S. 861, 868; *Cipollone v. Liggett Group, Inc.* (1992) 505 U.S. 504.)

With respect to all forms of preemption, the pertinent statutory authority is the CAA. The CAA authorizes the EPA to establish standards for gasoline, fuel component, and emissions standards for motor vehicles, and the EPA has in turn developed emissions and gasoline regulations, enforcement provisions, penalties, and preemptive effects. (42 U.S.C. § 7521.) Under this authority, the EPA has established fuel-specific specifications for sulfur content (40 C.F.R. §§ 1090.200, 1090.205(a)), vapor pressure (40 C.F.R. § 1090.215), and benzene content (40 C.F.R. §§ 1090.200, 1090.210(a)-(b); 42 U.S.C. § 7521(l)), among a host of other natural gasoline components and additives. Currently, the EPA standard requires gasoline to “meet a benzene average standard of 0.62 volume percent” and “a maximum benzene average standard of 1.30 volume percent.” (40 C.F.R. § 1090.210.) The EPA granted California an exception, and California imposes a modified standard that the average benzene content of gasoline cannot exceed 0.7%, with a 0.8% maximum. (Cal. Code Regs. tit. 13, § 2262.)

Express Preemption. The CAA contains two applicable express preemption provisions. First, the CAA states that “[n]o State or any political subdivision thereof shall adopt or attempt to enforce any standard relating to the control of emissions from

new motor vehicles or new motor vehicle engines subject to this part.” (42 U.S.C. § 7543(a).) Second, “no State (or political subdivision thereof) may prescribe or attempt to enforce, for purposes of motor vehicle emission control, any control or prohibition respecting any characteristic or component of a fuel or fuel additive in a motor vehicle or motor vehicle engine” if “the Administrator has prescribed under paragraph (1) a control or prohibition applicable to such characteristic or component of a fuel or fuel additive, unless State prohibition or control is identical to the prohibition or control prescribed by the Administrator.” (42 U.S.C. § 7545(c)(4)(A)(ii).)

Nothing in either preemption clause purports to address private tort claims. As shown at Section 7604(e), Congress knew how to distinguish private tort claims from State regulation or enforcement. The omission of private actions from the express preemption provisions is therefore significant.

Furthermore, the express preemption clauses of Sections 7543(a) and 7545(c)(4)(A)(ii) do not encompass one of Plaintiff’s two theories of causation – that Decedent contracted cancer from inhaling vapors from gasoline in containers. That alleged harm implicates no “standard relating to the control of emissions from new motor vehicles or new motor vehicle engines” nor an attempt to enforce, “for purposes of motor vehicle emission control,” a control or prohibition on the characteristic of gasoline. (Emphases added.)

For these reasons, the Court finds that the CAA does not expressly preempt the private tort claims asserted here.

At the same time, the Court disagrees with Plaintiff that the savings clause of Section 7604(e) means that no preemption, express or implied, can stand. The savings clause of 42 U.S.C. § 7604(e): “Nothing in this section shall restrict any right which any person (or class of persons) may have under any statute or common law to seek enforcement of any emission standard or limitation or to seek any other relief.”

Plaintiff construes the ending phrase “any other relief” to mean that the CAA as a whole cannot bar any action for relief under even an implied preemption theory. While the last part of the sentence (“to seek any other relief”) is important, so is the first part, - “Nothing in this section. . . .” The “section” in question concerns the mechanism for bringing citizen suits for violations of emission standards under the CAA. (42 U.S.C. § 7604(a).) Thus, the provisions for bringing citizens suits do not expressly preempt private tort actions for “any relief.” But the limitation of the savings clause to “this section” leaves very much open whether any other section of the CAA at least impliedly preempts Plaintiff’s claims. The Court therefore considers ways other than express preemption that could bar the claims here.

Implied, Obstacle, and Field Preemption. Moving Defendants argue that, regardless of express preemption, preemption is otherwise implied. As shown above, the savings clause of Section 7604 does not preclude such analysis.

Plaintiffs do not argue that Moving Defendants violated the CAA or the EPA’s federal standards, but seek relief in state tort law.

However, Plaintiffs’ causes of action are nonetheless impliedly preempted by the CAA. Plaintiffs’ wrongful death cause of action is based on the assertion that Defendants “negligently and carelessly designed, refined, manufactured and/or sold the unleaded gasoline described...that it was dangerous and unsafe for intended uses” and that as a result of Defendants’ manufacture and sale of gasoline, “[D]ecedent was seriously injured through his exposure to gasoline exhaust and gasoline fumes during the period June 30, 2006 until August 14, 2020 while using the gasoline and gasoline products in the manner in which it was intended.” (SAC, ¶¶ 22-23.) Plaintiffs’ strict products liability cause of action is based on their assertion that “the gasoline and gasoline products and their component parts were defective as to design, manufacture and warnings causing the gasoline and gasoline products and its component parts to be in a defective condition that made them dangerous and unsafe for their intended uses,” because “[a]ll of these products contain benzene which is known to cause Acute Myeloid Leukemia, the condition which lead to the demise of [Decedent].” (SAC, ¶ 28.) Plaintiff’s discovery responses further establish that her claims are based on Moving Defendants selling gasoline containing benzene. (See Exs. 2-5.)

Based on the allegations in the SAC and Plaintiff's discovery responses, Plaintiffs' action clearly is related to, has a connection with, and has reference to the regulation of the composition, standards, and federal standards for fuel composition and fuel emissions. Based on the unrefuted evidence provided, these assertions (1) are contradicted by the evidence presented by Moving Defendants, which establishes that benzene is a natural component of crude oil and not an additive, and that the EPA found that lowering the current federal regulatory standard of benzene from 0.62 vol% to even 0.52 vol% is not feasible, (2) seek to hold Moving Defendants liable notwithstanding their compliance with EPA standards, and (3) therefore attempt, in effect, to have a jury in this case enforce a standard of permissible levels of benzene in gasoline under California state law that is not identical to the current federal regulatory standards of the EPA.

"[O]bstacle preemption arises when 'under the circumstances of [a] particular case, [the challenged state law] stands as an obstacle to the accomplishment and execution of the full purposes and objectives of Congress.' [Citation.]" (Viva, supra, 41 Cal.4th at 935.) Moving Defendants have provided evidence that the EPA expressly considered, assessed, and rejected the feasibility of lowering the federally prescribed national standard to 0.52 vol% of benzene in fuel. The EPA also stated that a 0.62 vol% of benzene is feasible, reasonable, will reduce pollution and risks to the public, and achieves several other important federal program goals. There is also a clear Congressional purpose and objective to delegate exclusive authority to the EPA for establishing appropriate nationwide standards for fuel and motor vehicle emissions and to preempt all contrary state laws, regulations, and standards. As Moving Defendants argue, should Plaintiffs' action proceed, the case would have the Court and a jury find that Defendants breached a duty under California state law to remove all benzene from their gasoline before selling it to consumers, which would pose an obstacle to the EPA's express purpose and objective in ensuring gasoline uniformity and avoiding the placement of undue burdens on gasoline refiners, as further nationwide reduction from the current federal standard has already been found to be unachievable by the EPA. (Motion, p. 17:14-18.)

Finally, field preemption, i.e., 'Congress' intent to pre-empt all state law in a particular area,' applies 'where the scheme of federal regulation is sufficiently comprehensive to make reasonable the inference that Congress 'left no room' for supplementary state regulation.' [Citation.]" (Viva, supra, 41 Cal.4th at 935.) "Field preemption occurs when federal law occupies a 'field' of regulation so comprehensively that it has left no room for supplementary state legislation. Where Congress occupies an entire field, even complementary state regulation is impermissible." (County of Butte v. Department of Water Resources (2022) 13 Cal.5th 612, 643.) In Washington, the Supreme Court noted that "Congress has largely pre-empted the field with regard to 'emissions from new motor vehicles,' and motor vehicle fuels and fuel additives." (Washington, supra, 406 U.S. 109, 114.) Congress did so "to ensure uniformity throughout the nation, and to avoid the undue burden on motor vehicle manufacturers which would result from different state standards." (Motor Vehicle Mfrs. Ass'n v. New York State Dep't. of Envtl Conservation (N.D.N.Y. 1993) 810 F. Supp. 1331, 1337.)

As discussed, the CAA provides sweeping, exclusive regulatory authority to the EPA on the issue of fuel composition and emissions, sweeping express preemption provisions prohibiting state and local regulation without the EPA's express permission, and the EPA has established a broad, detailed federal regulatory framework setting forth a full and complete set of standards governing vehicle fuel and emissions. To hold that Plaintiffs' claims, based entirely on the alleged insufficiency of the fuel composition and emission of gasoline manufactured and sold by Moving Defendants, may proceed would be to maintain an action which seeks to impose obligations on Moving Defendants that have already been expressly established by the EPA in a field already comprehensively occupied by federal regulation. Because Congress intended to completely occupy this field, and did so, Plaintiffs' action is preempted by the CAA.

In opposition, Plaintiff argues the EPA only set a maximum limit for benzene content, but does not compel manufacturers to use exactly the amount of 0.62%, and that compliance with federal regulations does not provide immunity from civil suit. (Opp., p. 9:1-5.)

A similar argument was rejected in *Geier v. Am. Honda Motor Co.* (2000) 529 U.S. 861. In *Geier*, the plaintiffs brought suit against a car manufacturer for common law negligent and defective design because the vehicle lacked an airbag, asserting that while federal standard required auto manufacturers to equip some, but not all, of their vehicles with restraints, the defendant manufacturer, who was in compliance with the federal standard, nonetheless should have equipped their automobile with air bags as a safer option than meeting only the minimum requirements of the federal standard. (Id. at 864-65.) The Supreme Court found that the plaintiffs' tort action was dependent upon its claim that the defendant manufacturers had a duty to install an airbag, that a rule of state tort law imposing such a duty, by its terms, would require manufacturers of all similar cars to install airbags to avoid state-specific liability, rather than other systems authorized under the standards sought by the federal regulation, and therefore would have presented an obstacle to the accomplishment and execution of the federal objectives sought by the regulation of granting manufacturers a choice as to what safety systems to

employ, and the tort claims were thus preempted. (Id. at 881.)

Similarly here, Plaintiffs' wrongful death and strict products liability causes of action rest upon their assertion that Moving Defendants owed a duty to Decedent not to include any benzene in their gasoline and instead utilize safer alternatives. Imposition of a California state law duty on manufacturers and distributors of gasoline to remove all benzene from gasoline prior to sale and distribution, or otherwise a duty to reduce benzene concentration or replace benzene with an alternative additive, conflicts with the CAA and presents an obstacle to the accomplishment and execution of the federal objectives sought by Congress through the CAA and EPA in establishing national uniformity, and any action attempting to do so is therefore preempted.

Plaintiff also relies on the broad savings clause in 42 U.S.C. § 7604(e), which again reads: "Nothing in this section shall restrict any right which any person (or class of persons) may have under any statute or common law to seek enforcement of any emission standard or limitation or to seek any other relief." (Opp., p. 17:23-18:5.) As analyzed above, that savings clause is limited to a statutory section concerning the initiation of citizen's suits. As a result of that limitation, the clause has no bearing on whether the CAA as a whole preempts common law tort actions seeking to impose liability on manufacturers pursuant to standards that conflict with or frustrate federal standards. Here, Plaintiffs' state law causes of action, including wrongful death resulting from fuel emissions and product liability based on the design and manufacture of fuel, turn entirely on the composition and makeup of Moving Defendants' gasoline products, and the two cannot be separated.

Returning to *Geier*, the Supreme Court confronted the issue of whether a savings clause in a federal regulatory scheme removes a common law action from ordinary preemption principles and held that it does not. (*Geier*, supra, 529 U.S. at 867.) Specifically, the Court held that where express preemption does not apply because of a savings clause permitting common law actions, the savings clause alone does not foreclose through negative implication any possibility of implied preemption, and does not serve to limit the operation of ordinary preemption principles where state laws and common law rules actually conflict with federal standards. (Id. at 869.) That is not our case, as the savings clause is tailored to a narrow section of the CAA. But even so, *Geier* is instructive, as the Court "declined to give broad effect to saving clauses where doing so would upset the careful regulatory scheme established by federal law" and found the action was preempted because the common law causes of action attempted to impose a duty under state law that presented an obstacle to the federal objective of giving auto manufacturers the choice of which safety provisions they wished to employ in complying with the federal standard. (Id. at 868, 870, 881.)

Here, as was the case in *Geier*, Plaintiffs are attempting to impose on Moving Defendants, and effectively all entities manufacturing and distributing gasoline in California, a duty that is not imposed by the federal standard, was rejected by the EPA, and presents an obstacle to federal objectives in a field completely occupied by Congress. Though Plaintiffs claims are not directly related to enforcement of the CAA, they are directly related to an attempt at creating and imposing a standard in conflict with the federal standard. The operative language of 42 U.S.C. § 7543(a) is that no state, or state law claim, may "adopt or attempt to enforce any standard relating to the control of emissions from new motor vehicles or new motor vehicle engines subject to this part." Also fatal to Plaintiff's argument is the language of 42 U.S.C. § 7545(c)(4)(A)(ii), which states that any attempt to "prescribe or attempt to enforce, for purposes of motor vehicle emission control, any control or prohibition respecting any characteristic or component of a fuel or fuel additive in a motor vehicle or motor vehicle engine" where "the Administrator has prescribed...a control or prohibition applicable to such characteristic or component of a fuel or fuel additive" and the control attempted to be prescribed or enforced is not "identical to the prohibition or control prescribed by the Administrator" is preempted. Plaintiffs' action, resting on their one central contention that Moving Defendants breached a duty in manufacturing and selling gasoline containing benzene, effectively attempts to enforce a ban of benzene, a component of a fuel in a motor vehicle or motor vehicle engine, under California law, where the EPA has already prescribed an express control of 0.62 vol%.

Finally, as argued by Defendants, the cases relied on by Plaintiffs are inapposite. *Nelson v. Superior Court* (2006) 144 Cal.App.4th 689 does not discuss preemption and addresses groundwater pollution, not air pollution or air emissions under the CAA. *California v. Navy* (9th Cir. 1980) 624 F.2d 885 addresses aircraft emissions and aircraft engines, not motor vehicle fuel or fuel emissions. Plaintiff also cites to *Buccery v. General Motors Corp.* (1976) 60 Cal.App.3d 533, where the Court permitted an action to proceed on common law theories of liability despite the defendant's compliance with federal standards, relying in part on *Arbet v. Gussarson* (1975) 66 Wis.2d 551, in which the Wisconsin Supreme Court rejected the argument that Congress preempted the field of automobile safety regulation by authorizing the establishment of federal standards, reasoning that "Congress felt that federal regulations should be supplementary to the common law of products liability." Regardless of the applicability of that reasoning to the facts of *Buccery*, which concerned unsafe design and a product defect

claim for lack of a head restraint in a vehicle, the reasoning applied by Arbet regarding Congressional intent is inapplicable to the case at hand based on the express language of the CAA and its clear intent to remove gasoline components and fuel emissions from state reach.

In short, Plaintiffs' state law claims attempt to hold Moving Defendants liable under California state law pursuant to a standard in direct conflict with federal standards, and therefore, Plaintiffs' claims are preempted by the CAA.

#### b. Causation

In any event, the Court also finds that Defendants are entitled to summary judgment on the independent ground that Plaintiff has failed to establish causation through competent, admissible evidence.

To establish the element of actual or legal causation, a plaintiff must show "the defendant's act or omission was a substantial factor in bringing about the plaintiff's harm." (Leslie G. v. Perry & Associates (1996) 43 Cal.App.4th 472, 481.) The "plaintiff must show some substantial link or nexus between the omission and injury." (Saelzler v. Advanced Group 400 (2001) 25 Cal.4th 763, 778.) The plaintiff must supply evidence that affords a reasonable basis for the conclusion that "it is more likely than not that the conduct of the defendant was a cause in fact of the result," a mere possibility of causation is not sufficient and the court shall direct a verdict for the moving defendant when the matter remains one of pure speculation or conjecture. (Ortega v. Kmart Corp. (2001) 26 Cal.4th 1200, 1205-06.)

Moving Defendants move on the grounds that Plaintiff lacks admissible evidence that Defendants' gasoline caused Decedent's AML or death. (Motion, p. 7:10-11.) Plaintiff alleges Decedent's workplace exposures to gasoline were a cause of his AML and death. (PSUMF, ¶ 5.) It is undisputed that Moving Defendants supply gasoline in California. (PSUMF, ¶ 6.) The causation argument has two parts. First, Moving Defendants argue that Plaintiffs lack evidence that Decedent was exposed to Moving Defendants' gasoline. Second, they argue that Plaintiffs lack evidence that any such exposure caused Decedent to contract AML. Failure to muster evidence for either part of the causation chain breaks the chain, and Plaintiffs' claims fail. "If there has been no exposure, there is no causation." (McGonnell v. Kaiser Gypsum Co. (2002) 98 Cal.App.4th 1098, 1103.) "The mere 'possibility' of exposure does not create a triable issue of fact," and "[i]t is not enough to produce just some evidence," and it "must be of sufficient quality to allow the trier of fact to find the underlying fact in favor of the party opposing the motion for summary judgment." (Andrews v. Foster Wheeler LLC (2006) 138 Cal.App.4th 96, 108.)

Moving Defendants establish that the exposures that allegedly caused Decedent to develop AML occurred from June 2006 to August 2020 while working for DOT, where he was responsible for maintaining the grassy berms along California highways, primarily in the Antelope Valley using "gasoline-powered lawn mowers, gasoline-powered weed-eaters, gasoline-powered chain saws and gasoline-powered hedge trimmers." (Ex. 1, p. 9, SAC ¶ 11; Ex. 4, p. 37, Interrogatory No. 3, p. 38, Interrogatory No. 6; Ex. 5, p. 51, Interrogatory No. 3, p. 52, Interrogatory No. 6.) The exposure allegedly happened through two ways: 1) inhalation of gasoline vapors from containers at Decedent's job site, and 2) inhalation of automobile emissions.

Moving Defendants present the transcript of the Deposition of Stephen Nicholas Stromberg, who testified on behalf of DOT that it cannot identify the manufacturer of the gasoline in the containers, that the gasoline at the maintenance facility was delivered by Pinnacle Fuel (Pinnacle), and that Pinnacle does not say where the gasoline delivered originated. (Ex. 6, p. 13:23-14:6, 15:19-16:12.) Liz McKinnley testified on behalf of Pinnacle that it purchases gasoline from various sources, that the gasoline it purchased and supplied was unbranded, obtained from either an unbranded pipeline tank fed from multiple sources or purchased from local distributors who do not disclose what producers contribute gasoline or gasoline products into the pipelines Pinnacle draws from, and that there are no records establishing which facilities Pinnacle purchased gasoline products from during the relevant time period. (Ex. 7, p. 11:12-14, 13:10-17, 13:24-15:11.)

Moving Defendants also establish that while Decedent was exposed to exhaust from the gasoline powered vehicles using the highways he maintained, Plaintiff does not know or possess evidence of the manufacturers of the gasoline used in the vehicles, but can only speculate or assume that some of the cars used Moving Defendants' gasoline. (PSUMF, ¶ 10; Ex. 4, p. 36, Interrogatory No. 1; Ex. 5, p. 51, Interrogatory No. 3.) In Plaintiff's response to Moving Defendants' interrogatories, which read: "State every fact in support of YOUR contention that [Decedent] was exposed to [Moving Defendants'] gasoline,

Plaintiff states: “[Defendants] deliver[] gasoline, gasoline products and diesel fuel to retail gasoline service stations throughout California and specifically in the Antelope Valley in Los Angeles County.... As these fuels are sold at or near freeway entrances near the location where [Decedent] was working, it is reasonable to assume that some of the exhaust fumes inhaled by [Decedent] emanated from these products.” (Ex. 2, p. 20, No. 1; Ex. 3, p. 28, No. 1; Ex. 4, p. 36, No. 1; Ex. 5, p. 50, No. 1.) In response to Moving Defendants’ interrogatories requesting facts to support her contention that Moving Defendants delivered the fuel sold near the location where Decedent worked, Plaintiff states she presumes that because Moving Defendants’ business locations near Decedent’s work locations provide retail gasoline, and said locations advertise use of these fuels, the fuels are delivered to the retail business locations by Moving Defendants. (See Ex. 4, 5.)

With respect to whether any such exposure caused Decedent’s cancer, Moving Defendants further provide the Declaration of Dominik Alexander, PhD., M.S.P.H., a retained epidemiologist. Alexander asserts that recognized risk factors for AML include advancing age, male gender, white race, family history of hematopoietic malignancies, tobacco use, increased body weight, and therapeutic radiation, and based on review of the totality of analytical epidemiologic studies, the epidemiologic evidence does not indicate an association between work in highway maintenance or exposure to diesel fuel and risk of AML. (Alexander Decl., ¶¶ 9-10, 12.) Alexander notes that as of November 2025, the International Agency for Research on Cancer has not identified work in highway maintenance or exposure to diesel fuel or gasoline exhaust as having even limited evidence of carcinogenicity for AML, and in IARC monograph 105 that evaluated the carcinogenicity of diesel exhaust, the working group concluded that there was inadequate evidence in humans for the carcinogenicity of gasoline engine exhaust. (Alexander Decl., ¶ 10.) Alexander asserts the exposure conditions necessary to increase the risk of AML from benzene exposure are well established in the literature and are defined as occurring when a cumulative exposure of at least 40-200 ppm-years is obtained within 15 years of diagnosis, citing numerous studies in which no increased risks of AML were reported with less than 40 ppm-years of cumulative exposure to benzene, and states that potential exposure to benzene from exhaust exposure near roadways has been shown to be orders of magnitude lower than the level of benzene required to cause AML (e.g., < 1 ppm). (Alexander Decl., ¶ 11.)

Ultimately, Alexander concludes to a reasonable degree of scientific and epidemiologic certainty that the epidemiological evidence does not support an increased risk of AML among highway maintenance workers, that generalizability of data from benzene-exposed study populations to highway maintenance workers is not valid due to the tasks, duties, and exposures associated with highway work, that if highway work entailed exposures to benzene that caused AML, it would have been identified in the voluminous epidemiologic literature, that Decedent had some key risk factors for development of AML, including being a white male with an increased BMI and extensive history of tobacco use, and that a significant portion of AML cases occur in the general population in the absence of identifiable etiologic factors. (Alexander Decl., ¶¶ 12-16.)

The evidence presented thus satisfies Moving Defendants’ burden of showing (1) Plaintiff cannot establish that Decedent was exposed to Moving Defendants’ gasoline in his hand tools or from vehicles on the highway, and (2) Plaintiff cannot establish that gasoline emissions or vehicle exhaust were the cause of Decedent’s AML.

As a preliminary matter, most of the evidence presented by Plaintiff in opposition is inadmissible hearsay. Plaintiff’s counsel has submitted a declaration attaching a variety of articles and writings on technical and scientific matters, apparently downloaded from the Internet and offered for the truth of the matter asserted. (Evid. Code, § 1200.) Counsel provides no basis for how he is capable of authenticating the Exhibits. No hearsay exception has been established for any of the Exhibits for which Moving Defendants’ objections were sustained. Plaintiff’s discovery responses also may not be used by Plaintiff in her own favor on summary judgment. (Code of Civil Procedure, § 2030.410; *Great American Ins. Cos. v. Gordon Trucking, Inc.* (2008) 165 Cal.App.4th 445, 450 [a “party may not use its own interrogatory responses in its own favor”].)

As to the Declaration of Dr. Clinton Merrill, there are several problems.

First, the Court sustains Defendant’s objection to the document in its entirety, as Dr. Merrill was purportedly not disclosed as an expert until August 11, 2026, days before Plaintiff’s opposition was filed and beyond the May 28, 2026 disclosure deadline, and Moving Defendants did timely exchange their expert witness information. (Bonneville Decl., ¶¶ 2-9, Ex. 14, 16, 19.) Code of Civil Procedure section 2034.300 provides that “on objection of any party who has made a complete and timely compliance with Section 2034.260, the trial court shall exclude from evidence the expert opinion of any witness that is offered by any party who has unreasonably failed to do any of the following: (a) List that witness as an expert under Section 2034.260.” Thus, “[a] party opposing a motion for summary judgment ‘may not use declarations of experts not previously

disclosed if the time for disclosure under [Code of Civil Procedure section] 2034.210 et seq. has expired.” (Wong v. Stillwater Ins. Co. (2023) 92 Cal. App. 5th 1297, 1324.) Therefore, the Declaration of Dr. Clinton Merrill must be excluded in its entirety for the purposes of this motion.

Even if the Court were to excuse the late submission of the Merrill Declaration (which the Court may not), there are fundamental problems with the Declaration itself. Merrill is a retired treating oncologist. He does not appear to have any training as an epidemiologist. (Merrill Decl., Ex. A.) None of his lectures or publications appear to concern epidemiology or environmental causes of cancer. (Id.) He states that he has experience “in the field of diagnosing, treating, and identification of the sources of blood borne cancers including acute myeloid leukemia,” (Merrill Decl., ¶ 1) but does not explain what is meant by “the sources of blood borne cancers” and whether that includes the type of analysis he conducted here. His analysis here consisted of reviewing Decedent’s medical records (a task Dr. Merrill is undoubtedly qualified for), and also a review of the scientific literature to determine “the cause of the decedent’s [AML], and whether decedent was at an increased risk for development of this disease from exposure to the defendant’s products. . . .” (Id., ¶ 4.) Whether Dr. Merrill has the sufficient training or expertise to perform a competent search, review, and analysis of the literature on varying exposures to hydrocarbons and causation of types of cancer is not established by either his declaration or CV. As such, the Court would be inclined to exclude his opinion even if timely disclosed. (See Sargon Enterprises, Inc. v. University of Southern California (2012) 55 Cal.4th 747, 769-772 (trial court acts as a gatekeeper to exclude expert opinion testimony that lacks a reliable foundation or is speculative); Evid. Code, § 720 (a witness is qualified to testify as an expert only if he or she has special knowledge, skill, experience, training, or education sufficient to qualify as an expert on the subject to which the testimony relates).)

There is also a problem with the degree of confidence in which Dr. Merrill expresses his opinion. While Dr. Merrill concludes his declaration with a statement his opinions are “made to a reasonable degree of scientific hematological oncology certainty” (Merrill Decl., at 13), but nowhere does Merrill assert the opinion that, to a reasonable degree of medical certainty, Decedent’s exposure to Moving Defendants’ products caused Decedent’s cancer. Dr. Merrill opines that Decedent’s medical records are “consistent with benzene-induced AML” (page 13, line 13) or that computer models show that AML “may” arise at benzene exposure levels lower than those identified by Moving Defendants’ expert (id., at page 4, 7-10) but these opinions fall short of asserting that, to a reasonable degree of medical probability, exposure to Moving Defendants’ product caused Decedent’s AML. Plaintiff must come forward with such expert opinion at summary judgment to demonstrate that there is a triable issue of fact as to causation. (Onglyza Product Cases (2023) 90 Cal.App.5th 776, 792-793 (affirming summary judgment for drug manufacturers where a biostatistician’s opinion that the data showed only a statistical association between the medication and an increased risk of harm was insufficient to create a triable issue as to general causation).)

As to Decedent’s exposure to Moving Defendants’ specific gasoline products, Plaintiff has not presented competent admissible evidence to establish the exposure-in-fact necessary to create a triable issue on causation. Plaintiff provides the California Energy Commission’s Data Report as of July 8, 2026 regarding California oil refinery locations and capacities, which states that Defendant Chevron produces 38.4% of the California crude oil capacity. The Court notes that this source is hearsay, not subject to judicial notice, and includes a note, stating that the data provided “represents total crude oil capacity not gasoline, distillate production, diesel fuel production or production of other products.” Given the capacity of Moving Defendants’ and their respective production and sale outputs of gasoline, Plaintiff argues that it stands to reason that a proportion of the product to which Decedent was exposed came from the Moving Defendants. (Opp., p. 13:12-15.)

However, speculation, assumption, and possibility of causation are not enough to raise a triable issue of material fact on summary judgment. Plaintiff has not provided any evidence that Moving Defendants maintained retail business locations near Decedent’s working sites, or that Moving Defendants supplied the gasoline to the retail business locations near Decedent’s work sites, or that the vehicles driving on the highway were carrying and burning gasoline manufactured by or purchased from Moving Defendants, or that Moving Defendants supplied gasoline to Pinnacle, or that Pinnacle then supplied that gasoline to DOT, or that the specific gasoline supplied by Moving Defendants was then used to power Decedent’s hand tools. McKinnley’s deposition testimony that major oil companies generally have their branded Chevron gasoline for retail sales and unbranded Chevron gasoline that goes to resellers like Pinnacle is also insufficient to raise a triable issue of material fact as to whether Plaintiff possesses any admissible evidence to establish more than a possibility of Decedent’s contact with Moving Defendants’ gasoline or vapor, particularly because McKinnley also testified that Pinnacle is not currently purchasing gasoline from Exxon, that she does not know or remember what gasoline was provided to Pinnacle at the relevant times, and that all gasoline bought and sold by Pinnacle is unbranded and the source unknown. (Plaintiff’s Ex. 12, p. 14:4-5, 14:10-16:6.) Plaintiffs’ arguments as to causation are purely speculative and inferential. Reasonable as they may be, inferences based solely on Plaintiffs’ allegations in the SAC without admissible evidence are insufficient to raise a triable issue of material fact in light of Moving Defendants’ unrefuted evidence establishing that Plaintiff has no admissible evidence

establishing Decedent's contact with their specific gasoline or products.

As to causation of cancer, "'the unknown and mysterious etiology of cancer' is beyond the experience of laymen and can only be explained through expert testimony" that "establishes a reasonably probable causal connection between an act and a present injury." (Jones v. Ortho Pharm. Corp. (1985) 163 Cal. App. 3d 396, 403.) As the Merrill Declaration has been excluded in its entirety, as with the articles and studies Plaintiff's counsel sourced from the Internet, Plaintiff has submitted no evidence to establish Decedent's AML was caused by benzene exposure, let alone benzene from gasoline supplied by Moving Defendants.

Accordingly, Moving Defendants' Motions for Summary Judgment are GRANTED.

Given the Court's rulings on preemption and causation as determinative of the Motions for Summary Judgment, the Court declines to reach the Motions for Summary Adjudication. (See Samara v. Matar (2018) 5 Cal.5th 322, 335 ("Trial courts can decline to reach issues that are unnecessary for judgment").)

-----

## VII. Conclusion

Defendant Exxon Mobil Corporation's Motion for Summary Judgment is GRANTED.

Defendant Chevron U.S.A. Inc.'s Motion for Summary Judgment is GRANTED.

[1] Plaintiff objects to the relevance and disputes the significance of this fact, but does not dispute the issue.